



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

February 03, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 9758
(SIXTEENTH REVISION)

EXPIRATION DATE: 2027-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: The Coleman Company, Inc.
Wichita, KS
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a Division 2.1 material in a non-refillable, non-DOT specification inside container conforming to the DOT Specification 2P except for size, testing requirements, wall thickness, marking and material requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304a(d) in that the maximum filling pressures is exceed, except as specified herein.
5. BASIS: This special permit is based on the renewal application of The Coleman Company Inc. dated October 3, 2022 and submitted in accordance with § 107.109.

Tracking Number: 2022104067

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Petroleum Gases, liquefied or Liquefied petroleum gas	2.1	UN1075	N/A
Gas cartridges, (<i>flammable</i>) without a release device, non-refillable	2.1	UN2037	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a non-refillable, non-DOT specification inside container conforming to U.S. Can Company Model LWC 360 or LWC 460 (as described on drawing Part No. 9700-1000 dated August 15, 1997) and Application de Gas' model CV 270 (drawing numbers 038637, 038476 and 038477 dated August 23, 1996), CV 470 (drawing number 024839 dated December 30, 1986), GT 106 (drawing 020194 dated August 9, 1983), C 206 (drawing 020189 dated August 10, 1983), CV360 (Drawing 027170 dated May 4, 1990, 018319 dated February 1988) and model CV250 (Application Des Gaz drawing numbers 038637 Rev.2 dated January 1, 1997, 038477 Rev. 4 dated February 8, 1999, 040402 Rev. 6 dated November 20, 1998 and 040401 Rev.3 dated May 18, 2000) on file with the Office of Hazardous Materials and with DOT Specification 2P (§ 178.33) except as follows:

§ 178.33-2 *Type and size.*

* * *

(b) * * * The maximum capacity of the container must not exceed 61 cubic inches (33.8 fluid ounces). The inside diameter must not exceed 4.25 inches.

§ 178.33-5 *Material.*

(a) Uniform quality chromium plated steel plate of drawing quality or uniform quality steel tin plate.

§ 178.33-7 *Wall thickness.*

(a) Any container with inside diameter over 3.40 inches must have a minimum wall thickness of 0.0128 inch and minimum base thickness of 0.0175 inch. For Model CV-270 containers the minimum wall thickness may not be less than 0.0118 inch. Other containers with an inside diameter less than 3.40 inches must have a wall thickness of 0.010 inch except in the area of the lower end of the three indentations in the side wall at the top of the can. In this area, the thickness must be at least 0.0079 inch.

§ 178.33-8 *Tests.*

(a) One container out of each lot of 1000 or less successively produced must be pressure tested to destruction. Test container may not distort (end may not reverse) at below 175 psig or equivalent pressure at 160 °F (whichever is less) and may not burst below 240 psig. The end must reverse before bursting. Should the test sample fail, 10 additional samples must be taken at random from the lot and tested as above. If any of the 10 additional samples fail the test, the lot must be condemned. For Model CV-360 containers, pressure testing as above on one container out of each lot of 25,000 or less successively produced per day is acceptable.

§ 178.33-9 *Marking.*

(a) * * *

(1) Each container must be marked “DOT SP-9758” in place of “DOT-2P”.

b. TESTING: Each container must be filled in accordance with the provisions of § 173.304a(d). Maximum charge pressure must not exceed 55 psig at 70 °F, or 125 psig at 130 °F. Each container filled for shipment must be heated until contents reach an equilibrium pressure of 130 °F. Acceptable containers must show no leakage, distortion, or other defect.

c. OPERATIONAL CONTROLS: The container must be packed in an outside packaging. Each outside packaging must be marked “INSIDE CONTAINERS CONFORM WITH THE PRESCRIBED REGULATIONS”.

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification

or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. Transportation of Division 2.1 (flammable gases) materials are not authorized aboard cargo vessel unless specifically authorized in the Hazardous Materials Table (§ 172.101).
 - e. Transportation aboard aircraft is prohibited.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWF/Casey Chambers